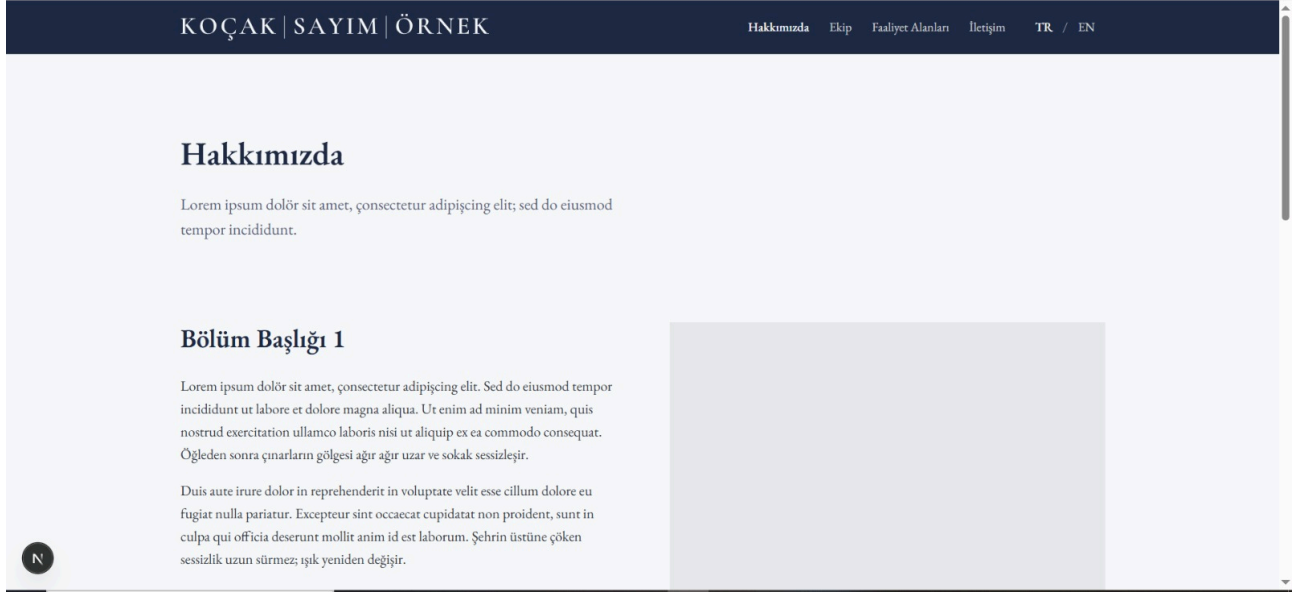


Açılıştaki resmin üzerinde

Welcome to our law firm.

yazacak

WHO WE ARE?

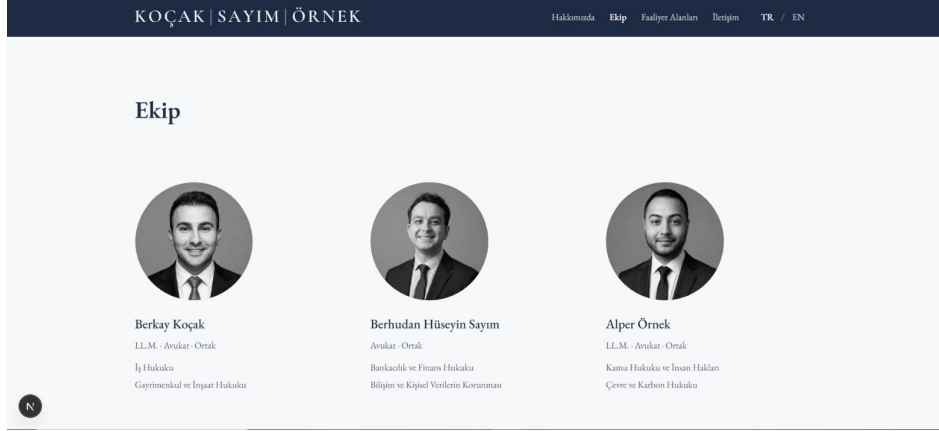


Koçak | Sayım | Örnek is an Istanbul-based law firm providing full-service legal support to local and international clients across their commercial, corporate and operational needs. We advise businesses operating in Türkiye, as well as international companies, investors and institutions on matters involving the Turkish market and cross-border transactions. Our advice is shaped not only by legal requirements, but also by the commercial realities in which our clients operate and make decisions.

We believe effective legal counsel should be clear, responsive and proactive. Through direct communication and early identification of legal risks, we help our clients prevent unnecessary disputes, reduce uncertainty and remain focused on their business objectives. In this context, we deliver practical and commercially aligned legal solutions that enable businesses to make informed decisions, manage risk effectively and move forward with confidence.

OUR PEOPLE

İlk kısım



Berkay Koçak

LL.M., Partner

Employment, Dispute Resolution, Mediation & Real Estate

Berhudan Hüseyin Sayım

MSc, Partner

Corporate & Commercial, Finance, Technology, Local & International Trade

Alper Örnek

LL.M., Partner

Public Law, Dispute Resolution, Regulatory, Healthcare & Sustainability

ikinci kısım

KOÇAK | SAYIM | ÖRNEK

HakkımızdaEkipFaaliyet AlanlarıİletişimTR / EN



Berkay Koçak
LL.M. · Avukat · Ortak

İş hukuku, sendika hukuku ve toplu iş sözleşmesi süreçleri ile uyuşmazlık çözümü alanlarında çalışmaktadır. Bireysel ve toplu iş ilişkilerinin kurulması, işyeri yapılanması ve fesih süreçleri; sendika yetki tespiti ve buna karşı yapılan itirazlar; toplu iş sözleşmesi görüşmelerinin yürütülmesi konularında hukuki danışmanlık vermektedir.

Yabancıların Türkiye'de çalışmasına ve Türk çalışanların yurt dışında görevlendirilmesine ilişkin istihdam yapıları da çalışma konuları arasındadır. Uyuşmazlıklarda dava öncesi değerlendirme, arabuluculuk ve yargılama



BERKAY KOÇAK

LL.M., Partner

Berkay advises employers and corporate clients on employment, workforce and industrial relations matters. He holds an LL.B. and an LL.M. in Private Law from İstanbul University. His practice covers individual and collective employment matters, employer-side advisory, trade union relations, collective bargaining and cross-border workforce arrangements. He also advises on business immigration matters, including work and residence permits, foreign employee mobility and citizenship-related processes. His established experience includes advising on the legal position of foreign employees working in Türkiye and Turkish employees working abroad.

Berkay combines preventive legal advice with an active dispute resolution practice, representing clients in employment, commercial and property-related disputes and providing both mandatory and voluntary mediation services. His practice also covers real estate and construction matters, intellectual property, enforcement and insolvency-related disputes. As a registered mediator, he provides mediation services across employment, commercial, consumer, intellectual property and insurance matters.

Key Focus

Employment & Social Security Law — Employment structures, workforce management, terminations and ongoing employer-side advisory

Trade Union & Collective Labour Law — Trade union matters, collective bargaining and collective labour agreements

Business Immigration & Citizenship — Work and residence permits, foreign workforce mobility and citizenship-related processes

Dispute Resolution & Mediation — Commercial and employment litigation, mandatory and voluntary mediation and settlement strategy

Real Estate & Construction Law — Development agreements, commercial leases, property transactions and related disputes

Intellectual Property, Enforcement & Insolvency — Intellectual property advisory and disputes, enforcement proceedings and insolvency-related contentious matters

BERHUDAN HÜSEYİN SAYIM

MSc, Partner

Hüseyin advises local and international companies, financial institutions, investors and technology businesses on corporate, commercial and transactional matters. He holds an LL.B. from İstanbul University and an M.A. in Financial Economics from Galatasaray University. His practice encompasses day-to-day commercial advisory, corporate governance, commercial contracts, strategic partnerships, joint ventures and complex business arrangements. He regularly advises companies on structuring and negotiating contractual relationships, shareholder and investor matters, internal governance frameworks and a broad range of commercial documentation.

His financial services practice includes corporate lending, LMA-aligned finance documentation, secured transactions, trade and receivables finance, cash management and ISDA-based derivatives. Hüseyin also acts as leading counsel on complex international trade and cross-border commercial projects involving multiple jurisdictions, advising on transaction structure, contractual architecture, negotiation strategy and execution. His wider practice covers financial restructuring, technology and IT contracting, payment systems, e-commerce, data protection and international trade matters, including customs, sanctions and export-control considerations.

Key Focus

Corporate & Commercial Law — Ongoing corporate advisory, commercial contracts, corporate governance, joint ventures and strategic business arrangements

Banking, Finance & Restructuring — Lending, secured finance, derivatives, trade finance, creditor structures and financial restructurings

International Trade, Customs & Sanctions — Leading cross-border commercial projects, international trade structures, customs, sanctions and export-control matters

Data Protection, IT & Technology Law — Technology contracts, payment systems, e-commerce, data privacy and KVKK compliance

Strategic Commercial Transactions — Complex contractual structures, shareholder and investor arrangements and multi-party commercial projects

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ALPER ÖRNEK

LL.M., Partner

Alper advises companies and institutions on public law, regulatory matters and complex disputes. He holds an LL.B. from İstanbul University and an LL.M. in Human Rights Law from Galatasaray University. His practice includes administrative proceedings, constitutional remedies and applications before the Constitutional Court and the European Court of Human Rights, combining procedural expertise with a practical understanding of commercial and institutional risk.

His practice also extends to healthcare law, real estate and construction, regulatory compliance and sustainability. Alper advises healthcare businesses across their regulatory lifecycle, including establishment, licensing and permit processes, regulatory approvals, operational compliance and dealings with competent public authorities. He also advises on zoning and development matters, construction projects, public and private tenders, enforcement and receivables recovery. His sustainability practice includes Carbon Law, Emissions Trading Systems, environmental compliance and green transformation projects. Alper is also a registered mediator and provides mediation services in commercial and consumer disputes.

Key Focus

Administrative, Public & Tax Law — Administrative proceedings, regulatory decisions, public-law disputes, tax-related contentious matters and coordination of specialist tax advice where required

Healthcare & Regulatory Law — Healthcare-sector advisory, licensing, permits, regulatory approvals and operational compliance

Competition, Compliance & Investigations — Competition law, regulatory compliance, internal investigations and white-collar risk management

Real Estate, Construction & Enforcement — Zoning, development, construction contracts, tenders, enforcement proceedings and receivables recovery

Dispute Resolution & Mediation — Litigation strategy, constitutional remedies, commercial disputes, mediation and negotiated settlements

Sustainability & Environmental Regulation — Carbon Law, Emissions Trading Systems, environmental compliance and green transformation projects

PRACTICE AREAS

1. Corporate and Commercial Law

Overview

We advise companies on the legal issues that shape their daily operations, governance structures and long-term commercial relationships. Our role extends beyond documenting transactions: we help clients structure their businesses, manage contractual risk and make commercially sound decisions within an increasingly complex legal environment.

We work closely with shareholders, boards, senior management and in-house legal teams on both recurring corporate matters and strategic projects. Our advice is designed to be practical, responsive and aligned with the realities of the client's business.

Core Services

Advising on corporate governance, board structures, shareholder rights and decision-making processes

Drafting and negotiating commercial agreements, including supply, distribution, agency, service, procurement and framework agreements

Structuring joint ventures, strategic alliances, shareholder arrangements and long-term commercial partnerships

Supporting company incorporations, branch establishments, capital increases and reductions, reorganizations and corporate housekeeping

Advising on directors' duties, shareholder conflicts, related-party transactions and corporate authority matters

Reviewing and restructuring contractual frameworks to improve risk allocation and operational efficiency

Supporting clients with ongoing corporate secretarial and statutory compliance requirements

2. International Trade, Customs and Sanctions

Overview

We advise companies engaged in cross-border business on international trade structures, customs rules and sanctions-related risks. Our role is to help clients execute transactions efficiently while managing regulatory, contractual and enforcement exposure across jurisdictions.

We work with exporters, importers, manufacturers, distributors and international trading businesses on both transactional and regulatory matters.

Core Services

Advising on international sale, distribution, agency and supply arrangements

Drafting and negotiating cross-border commercial agreements

Advising on Incoterms, delivery structures, title, risk transfer and payment mechanisms

Navigating customs, import and export regulations

Advising on sanctions, restricted parties and trade controls

Conducting sanctions and counterparty risk assessments

Advising on export controls and restricted goods

Representing clients in customs and trade-related disputes

Supporting cross-border payment, documentation and enforcement structures

Coordinating international trade matters involving multiple jurisdictions

3. Banking, Finance and Capital Markets

Overview

We advise banks, financial institutions, corporates, sponsors and investors on financing transactions, security structures and financial regulatory matters. Our work is centered on creating legally robust and commercially workable structures that reflect the allocation of risk agreed between lenders, borrowers and other stakeholders.

We support clients from structuring and term sheet stage through negotiation, execution, security perfection and restructuring. We also advise on the legal implications of changing financing conditions, covenant pressure and distressed situations.

Core Services

Advising on bilateral, syndicated, acquisition, working capital and structured financings

Drafting and negotiating facility agreements, loan agreements, guarantees and security documentation

Structuring mortgages, share pledges, account pledges, receivables assignments and other security packages

Advising on intercreditor arrangements, subordination structures and creditor priority

Supporting project finance, refinancing, leveraged finance and debt restructuring transactions

Advising on financial covenants, events of default, waivers, amendments and enforcement rights

Navigating banking, capital markets and financial regulatory requirements

Advising issuers, investors and financial institutions on capital markets transactions and related documentation

4. Dispute Resolution, Arbitration and Mediation

Overview

We represent clients in complex commercial disputes where legal strategy, business continuity and reputational considerations must be managed together. We assess disputes at an early stage, identify the client's commercial objectives and develop a strategy focused on achieving an efficient and enforceable outcome.

Our practice covers litigation, domestic and international arbitration, mediation and negotiated settlement processes. We view dispute resolution as a broader strategic exercise rather than a purely procedural one, and regularly advise clients on whether a matter should be litigated, arbitrated, mediated or resolved through commercial negotiation.

Core Services

Representing clients in commercial, corporate, contractual, shareholder and investment-related disputes
Acting in domestic and international arbitration proceedings
Representing clients in mandatory and voluntary mediation processes
Advising on mediation strategy, settlement parameters and negotiated resolution structures
Managing pre-litigation risk assessments and dispute avoidance strategies
Representing clients in interim injunction, precautionary attachment and other conservatory proceedings
Advising on enforcement strategy and recovery options
Enforcing and challenging domestic and foreign court judgments and arbitral awards
Supporting clients in settlement negotiations and drafting settlement agreements
Coordinating multi-jurisdictional disputes with foreign counsel and technical advisers

5. Restructuring, Bankruptcy and Insolvency

Overview

We advise creditors, debtors, financial institutions, investors and shareholders in financially distressed situations. These matters often require rapid legal analysis, careful stakeholder management and a clear understanding of both enforcement options and restructuring alternatives.

Our objective is to preserve value, protect legal rights and identify solutions that remain commercially viable under distressed conditions. We advise clients at both the preventive stage and throughout formal restructuring, concordat, insolvency and enforcement proceedings.

Core Services

Advising on financial restructurings, debt rescheduling and negotiated workouts
Structuring creditor arrangements, security packages and recovery strategies
Representing creditors and debtors in concordat and bankruptcy proceedings
Advising on insolvency risk, directors' duties and potential liability exposure
Reviewing transactions for clawback, preference and insolvency-related risks
Managing enforcement, attachment and foreclosure proceedings
Advising secured creditors on enforcement and realization of collateral
Supporting distressed M&A and acquisition of distressed assets
Advising on creditor coordination and multi-party restructuring negotiations
Developing legal strategies for non-performing and problem receivables

6. Employment and Labor Law

Overview

We advise employers on the full range of employment and labor law issues affecting workforce management, organizational change and daily operations. Our approach is designed to help clients maintain legal compliance while preserving the flexibility required to manage their businesses effectively.

We place particular emphasis on preventive legal advice, clear documentation and early risk management. We also represent employers in contentious matters and support management teams during restructurings, investigations and sensitive employment decisions.

Core Services

Advising on employment contracts, workplace policies and internal procedures
Structuring hiring, probation, promotion, transfer and termination processes
Advising on executive employment, bonus arrangements, non-compete and confidentiality provisions
Supporting workforce restructurings, redundancies and collective termination processes
Representing employers in employment litigation and mandatory mediation
Advising on overtime, annual leave, compensation, benefits and workplace practices
Supporting internal disciplinary and misconduct investigations
Advising on social security compliance and employer obligations
Assisting with work and residence permit matters for foreign employees
Reviewing employment practices as part of corporate transactions and legal due diligence

7. Competition, Regulation and Compliance

Overview

We help businesses navigate competition rules, sector-specific regulation and broader corporate compliance obligations without disrupting legitimate commercial activity. Our work focuses on identifying regulatory exposure early, designing workable compliance frameworks and supporting clients when regulatory scrutiny arises.

We advise on both transactional and operational matters, including merger control, commercial arrangements, internal policies and regulatory investigations.

Core Services

Advising on competition law compliance, restrictive agreements and market conduct
Reviewing distribution, supply, agency and exclusivity arrangements from a competition law perspective
Advising on abuse of dominance and sensitive commercial practices
Preparing and managing merger control filings and regulatory approvals
Representing clients in Competition Authority investigations and proceedings
Designing and implementing competition and regulatory compliance programs
Conducting compliance reviews, training and risk assessments
Advising on sector-specific regulatory requirements
Supporting internal compliance investigations and remediation projects
Advising boards and senior management on regulatory risk and governance

8. White-Collar Crime and Internal Investigations

Overview

We advise companies, boards and senior executives on sensitive allegations involving fraud, corruption, misconduct and potential criminal exposure. These matters require discretion, procedural discipline and careful coordination between legal, regulatory, employment and reputational considerations.

We conduct internal investigations, assess potential liability and support clients in responding to authorities, whistleblower reports and internal compliance concerns.

Core Services

Conducting and coordinating internal investigations
Advising on fraud, bribery, corruption, embezzlement and corporate misconduct allegations
Representing companies and executives in criminal investigations and proceedings
Advising on whistleblower reports and internal escalation procedures
Managing evidence preservation, interview protocols and investigation documentation
Assessing potential corporate and individual liability
Advising boards and management on investigation findings and remediation
Coordinating employment, compliance and regulatory aspects of investigations
Supporting clients in interactions with law enforcement and regulatory authorities
Advising on preventive controls and post-investigation compliance enhancements

9. Data Protection, IT and Technology Law

Overview

We advise businesses on legal issues arising from data-driven operations, digital transformation and technology contracting. Our work is designed to support innovation while ensuring that data use, technology procurement and digital business models remain compliant and contractually protected.

We work with both traditional businesses and technology-focused companies on privacy, software, digital platforms, outsourcing and emerging technology matters.

Core Services

Advising on Turkish data protection legislation, KVKK and GDPR-related compliance
Structuring privacy governance, policies and internal data protection frameworks
Advising on international data transfers and data processing arrangements
Drafting and negotiating software, SaaS, cloud, licensing and IT services agreements
Advising on outsourcing, technology procurement and digital transformation projects
Supporting e-commerce, digital platforms and online business models
Advising on data breaches, cyber incidents and regulatory notifications
Reviewing vendor and processor arrangements from a privacy and technology risk perspective
Advising on artificial intelligence and emerging technology-related legal issues
Supporting technology-related legal due diligence and transaction reviews

10. Intellectual Property Law

Overview

We advise clients on the protection, commercialization and enforcement of intellectual property rights that are central to brand value, innovation and competitive advantage. Our approach connects IP strategy with the client's broader commercial objectives.

We support clients throughout the lifecycle of intellectual property assets, from ownership and registration to licensing, exploitation and enforcement.

Core Services

Advising on trademarks, industrial designs, copyrights and related intellectual property rights
Managing trademark and design protection strategies and registration processes
Drafting and negotiating licensing, assignment, coexistence and commercialization agreements
Advising on IP ownership in employment, development and technology arrangements
Representing clients in infringement, invalidity and unfair competition disputes
Advising on brand protection and unauthorized use
Supporting IP portfolio reviews and legal due diligence
Advising on franchising, merchandising and rights-based commercial models
Structuring intellectual property elements of M&A and investment transactions

11. Real Estate and Construction Law

Overview

We advise investors, developers, contractors, landlords, tenants and operators on real estate investments and construction projects throughout their lifecycle. Our work focuses on legal certainty, effective allocation of project risk and commercially workable documentation.

We combine transactional, regulatory and contentious experience to support clients from acquisition and development through construction, operation, leasing and exit.

Core Services

- Advising on real estate acquisitions, disposals and investment structures
- Conducting title, zoning and project-related legal due diligence
- Drafting and negotiating commercial leases and long-term occupancy arrangements
- Advising on development, construction and project management agreements
- Drafting and negotiating contractor, subcontractor and procurement arrangements
- Advising on zoning, permits, licenses and development restrictions
- Structuring real estate joint ventures and development partnerships
- Representing clients in construction, lease and property disputes
- Advising on project delays, defects, variations and contractor claims
- Supporting real estate aspects of financing and corporate transactions

12. Mergers and Acquisitions

Overview

We advise buyers, sellers, investors, founders and management teams on domestic and cross-border M&A transactions across the full deal lifecycle. Our approach combines legal precision with an understanding of valuation, execution risk, negotiation dynamics and post-closing integration.

We focus on identifying issues that can materially affect the transaction, while avoiding unnecessary complexity that slows execution. From early-stage structuring to closing and post-closing implementation, we provide commercially focused support designed to protect value and facilitate decision-making.

Core Services

- Advising on share acquisitions, asset deals, mergers, demergers and strategic investments
- Structuring transaction processes, deal perimeter, consideration mechanisms and governance arrangements
- Conducting and coordinating legal due diligence across corporate, commercial, employment, regulatory and litigation matters
- Drafting and negotiating share purchase agreements, asset purchase agreements, shareholders' agreements and ancillary transaction documents
- Advising on warranties, indemnities, limitations of liability, escrow structures and purchase price adjustment mechanisms
- Structuring minority investments, joint ventures, management participation and exit arrangements
- Managing signing, closing, regulatory approvals and post-closing implementation
- Supporting cross-border transactions involving multiple jurisdictions, advisers and stakeholders

13. Tax and Administrative Law

Overview

We advise businesses on ta and public law matters that directly affect transactions, operations and regulatory exposure. Our work combines preventive legal structuring with representation before administrative authorities and courts when disputes arise.

We support clients in both transactional and contentious matters, particularly where commercial decisions intersect with ta, licensing, regulatory or administrative requirements.

Core Services

- Advising on the ta implications of corporate and commercial transactions
- Reviewing transaction structures from a legal ta-risk perspective
- Representing clients in ta audits, assessments and disputes
- Advising on ta penalties, settlement and litigation strategy
- Representing clients before ta courts and administrative courts
- Advising on administrative permits, licenses and regulatory approvals
- Representing clients in administrative sanction and enforcement proceedings
- Advising on public law implications of regulated business activities
- Supporting clients in dealings with public authorities
- Advising on administrative disputes arising from permits, licenses and regulatory decisions

CONTACT

KOÇAK | SAYIM | ÖRNEK

HakkımızdaEkipFaaliyet AlanlarıİletişimTR / EN

İletişim

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İletişim bilgileri

Adres

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Telefon

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Faks

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E-posta

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İletişim formu

Ad Soyad

E-posta

Telefon (isteğe bağlı)

We serve local and international clients from our office in the heart of İstanbul.

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